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Case Number: 25STCV18749 Hearing Date: August 6, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

TODD

SIMONS

Plaintiff,

vs.

FCA

US LLC, et al.,

Defendants

Case No.:

25STCV18749

Hearing

Date:

August 6, 2026

[TENTATIVE]

ORDER OVERRULING DEMURRER WITHOUT MOTION TO STRIKE, IN PART

I. BACKGROUND

Plaintiff Todd Simons ("Simons")

entered into a warranty contract with Defendant FCA US LLC ("FCA") regarding a 2019 Jeep Cherokee ("subject vehicle"), which Simons purchased from FCA's authorized retailer, Defendant Rydell Chrysler Dodge Jeep Ram ("Rydell"). The subject vehicle allegedly had defects and nonconformities making the car effectively worthless. FCA allegedly was aware of the subject vehicle's defects and failed to disclose the existence of defects at all times to Simons. Simons sued Defendants for six causes of action, including violation of Civil Code section 1793.2, subdivision (d), violation of Civil Code section 1793.2, subdivision (b), violation of Civil Code section 1793.2, subdivision (a)(3), breach of the implied warranty of merchantability, negligent repair and fraudulent inducement – concealment.

On February 2, 2026, FCA filed the instant demurrer to the First Amended Complaint ("FAC"). Simons filed an opposition. FCA filed a reply.

II. LEGAL STANDARD

As

a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where

a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the

court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

“[W]hile

a statute of limitations normally sets the time within which proceedings must be commenced once a cause of action accrues, the statute of repose limits the time within which an action may be brought and is not related to accrual.

Indeed, ‘the injury need not have occurred, much less have been discovered.

Unlike an ordinary statute of limitations which begins running upon accrual of the claim, [the] period contained in a statute of repose begins when a specific event occurs, regardless of whether a cause of action has accrued or whether any injury has resulted.’ [Citation.] A statute of repose thus is harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded. [Citation.]” (Giest v. Sequoia Ventures, Inc. (2000) 83 Cal.App.4th 300, 305.)

III. DISCUSSION

FCA demurs to Simons’ FAC, in full, on the basis all causes of action are time-barred due to expiration of the statute of repose and statute of limitations. FCA specifically argues the first, second and third causes of action for Song-Beverly Express Warranty Claims are time-barred by Code of Civil Procedure section 871.21[1].

The fourth and sixth causes of action are barred via applicable statutes of limitations. Finally, FCA demurs to the sixth cause of action for failure to allege facts sufficient to state a cause of action for fraudulent inducement – concealment.

A. Song-Beverly Express Warranty Claims

FCA argues the first three causes of action for violation of the Song-Beverly Warranty Act (Civ.

Code § 1790, et seq.) are barred by the statute of repose in section 871.21. Pursuant to section 871.21, subdivision (a), any applicable action must be commenced within one year after the expiration of the applicable express warranty.

The FAC alleges Simons

entered into a warranty contract on August 19, 2018, which provided a 3-year basic warranty and a 5-year mile powertrain warranty. (FAC ¶¶ 7-8, Ex. A.) Assuming the longer of the two warranties controls this action, Simons' warranty expired on August 19, 2023. Pursuant to section 871.21, any Song-Beverly Warranty Act claim needed to be filed by August 19, 2024.

Simons argues section

871.21 is inapplicable as application of the statute to this case would deny Simons his right to due process as the new statute left Simons no time to file suit. "[W]here the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes effect. If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party." (Rosefield Packing Co. v. Superior Court (1935) 4 Cal.2d 120, 122-23.) "Even though generally, the operation of statutes of limitations is considered to be a procedural matter in California, if a limitations period has been legislatively shortened, constitutional and substantive issues will arise concerning retrospective application if: '...If no time is left [to file suit], or only an unreasonably short time remains, then the statute cannot be applied at all.' [Citation.] It is a question of law whether a party has a reasonable time after a change in the law to file an action. [Citation.]" (Sznyter v. Malone (2007) 155 Cal.App.4th 1152, 1162.)

The effective date of a law

is the time in which the Court utilizes to determine if a plaintiff had reasonable opportunity to file suit. (Coleman v. Superior Court of Calaveras County (1933) 135 Cal.App. 74, 77-78.) "While we readily concede that all persons are chargeable with knowledge of the law, we do not perceive just how they can be held chargeable with the existence of an act which does not rise to the dignity of law until a certain date. The referendum provisions of the Constitution which prevent an act of the legislature from rising to the dignity of law are distinguishable, we think, from acts of the legislature which become a law immediately upon passage and approval by the Governor, but which contain provisions postponing the effective date thereof. In the former case one cannot be held chargeable with notice of that which may never become a law, and in the latter case all persons are held to be chargeable with that which has become a

law, irrespective of the date designated therein when it shall become effective.” (Id. at 77-78.)

The facts as alleged demonstrate Simons had no opportunity to file suit after the implementation of section 871.21. Section 871.21 was put into effect on January 1, 2025, pursuant to Assembly Bill No. 1755 (2023-2024 Reg. Sess.) Under the statute, Simons needed to file suit by August 19, 2024, to preserve his claims, months prior to implementation of the statute. Simons had no time to left to file an actionable suit under the new law. Therefore, the statute cannot be applied to Simons's claims in this case as it would violate Simons' right to due process.

As these claims are not barred by the statute of repose in section 871.21, the Court overrules the demurrer as to the first three causes of action.

B. Breach of Implied Warranty

FCA requests the Court sustain the demurrer as to the fourth cause of action for breach of implied warranty as it is barred by the statute of limitations. “The statute of limitations for breaches of the implied warranty of merchantability is four years.” (Montoya v. FCA Motor Co. (2020) 46 Cal.App.5th 493, 495.) A cause of action for breach of warranty occurs when the “tender of delivery is made, except where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Comm. Code section 2725, subd. (2).) As an implied warranty cannot explicitly extend to future performance of goods, the statute of limitation always runs from tender of delivery. (Cardinal Health 301, Inc. v. Tyco Elecs. Corp. (2008) 169 Cal.App.4th 116, 134.)

Simons wrongfully argues causes of action for breach of implied warranty may accrue at the time of breach by latent defect, citing Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1304, in support of this argument. Mexia holds to the contrary: “California courts have held that the statute of limitations for an action for breach of warranty under the Song–Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial Code: section 2725... A breach of warranty occurs when tender of delivery is made, except

that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered." (Id. at 1305-1306.) Claims for breach of implied warranty under the Song-Beverly Act always run from tender of delivery, as that is when the breach occurs. (Comm. Code § 2725, subd. (2).)

However, Simons alleges the implied warranty accompanied the sale of the vehicle. (FAC ¶ 62.) Therefore, the point of accrual runs from the delivery of the vehicle. (Comm. Code § 2725, subd. (2).) Simons does not allege when the subject vehicle was delivered. Therefore, FCA's argument the FAC, provides, on its face, a basis to demur based upon the statute of limitations is incorrect.

Simons's lack of alleged dates of delivery does not provide a basis for demurrer. The running of the statute must appear "clearly and affirmatively" from the face of the complaint; it is not enough that the complaint might be time-barred. (Committee for Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal. App. 4th 32, 42.) Absent date of delivery, and therefore date of breach, FCA cannot establish the state of limitations bars this action.

The Court overrules the demurrer as to this cause of action.

C. Fraudulent Inducement – Concealment

1. Status of Limitations

FCA

first requests the Court sustain the demurrer as to the sixth cause of action for Fraudulent Inducement – Concealment on the basis it is barred by the statute of limitations. Under Code of Civ. Proc. section 338, subd. (d), an action based in fraud has a three-year statute of limitations accruing from "the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." A plaintiff must exercise reasonable diligence in discovering alleged fraud. (Seelenfreund v. Terminix of Northern California, Inc. (1978) 84 Cal.App.3d 133, 136.)

Simons

alleges he entered into a warranty contract on August 19, 2018. (FAC ¶ 7.) However, Simons could not

have reasonably discovered any alleged fraud prior to delivery of the vehicle. Simons does not allege when the subject vehicle was delivered; therefore, the Court cannot establish the earliest possible date Simons could have discovered the fraud. Additionally, Simons explicitly alleges he did not discover FCA's fraud until shortly before filing the complaint, as the vehicle continued to exhibit symptoms of defects following FCA's attempts to repair it. (FAC ¶ 45.) Therefore, FCA's argument the FAC, provides, on its face, a basis to demur based upon the statute of limitations is without merit.

2. Specificity

FCA argues Simons fails to allege, with particularity the allegedly concealed defect, as Simons does not state the exact details of the defect. California's fact pleading standard requires the plaintiff to plead with sufficient specificity to "furnish the defendant with certain definite charges which can be intelligently met." (Committee on Children's Television, Inc. v. General Foods Corp. (1985) 35 Cal.3d 197, 216.) The specificity requirement is relaxed when, from the nature of the allegations, it appears "the defendant must necessarily possess full information," or "when the facts lie more in the knowledge of the opposing parties." (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384-85, internal quotations omitted; Tarmann v. State Farm Mutual Auto-Mobile Ins. Co. (1992) 2 Cal.App.4th 153, 158.) Details are to be the subject of discovery. (See Alfaro, supra, at 1385.)

FCA specifically cites to Santana v. FCA US LLC (2020) 56 Cal.App.5th 334, 345. In Santana, the court overruled a jury ruling finding defendant car warranty provider liable for fraudulent concealment, as there was insufficient evidence said defendant was aware of defects prior to the plaintiff purchasing the vehicle. (Id. at 338.) The court held defendant could not be liable absent evidence that, prior to purchase of the vehicle, defendant was aware of the defect and was either unwilling or unable to fix it. (Id. at 345-346.) The Court finds Santana unrelated to the issues presented on demurrer. Santana addresses the evidentiary burden to impose liability for fraudulent concealment; demurrer tests whether sufficient facts have been alleged within the complaint to present a viable cause of action. Santana also does not address the existence of a defect, but rather whether the defendant was aware of the defect.

Here, Simons's cause of action for fraudulent inducement specifically identifies the subject vehicle's 9-speed transmission suffers from defects that can result "hesitation on acceleration; loss of power, hard and/or harsh shifts, and/or jerking." (FAC ¶ 23.) The FAC further alleges FCA knew about these engine defects due to internal data, repair orders, testing and other internal sources. (FAC ¶¶ 26-27.) Simons asserted a general problem—the subject vehicle's transmission—of which FCA would have superior knowledge of facts regarding defects. Simons also alleged where FCA would obtain said superior knowledge. Further details are the subject of discovery. Simons sufficiently alleged concealment or suppression of a material fact.

3. Duty to Disclose

FCA next argues Simons failed to allege FCA had a legal duty to disclose the alleged defect. Nondisclosure or concealment may constitute actionable fraud in four circumstances: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; or (4) when the defendant makes partial representations but also suppresses some material fact." (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.) A duty to disclose may also arise when a defendant possesses or exerts control over material facts not readily available to the plaintiff. (Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1198, 1199.)

FCA claims, in part, FCA had no duty to disclose as FCA had no fiduciary relationship with Simons. Ordinarily, a duty to disclose absent a fiduciary relationship "presupposes the existence of [a] relationship between the plaintiff and defendant in which a duty to disclose can arise." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 311.) However, a vendor has a duty to disclose material facts "not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold." (OCM Principle Opportunities Fund v. CIBC World Markets Corp. (2007) 157 Cal.App.4th 835, 859-860.)

The duty to disclose to subsequent purchasers is limited: the plaintiff must show that the seller had special "reason to expect" that the fraud will be passed onto subsequent purchasers. (Geernaert

v. Mitchell (2007) 31 Cal.App.4th 601, 607-608.) Mere foreseeability is insufficient. (Id. [citing Restatement (Second) of Torts § 305, cmt. d (1977)].) In determining whether the seller had “reason to expect” that the fraud will be passed onto subsequent purchasers, courts generally consider two factors: “(1) the extent of the seller’s knowledge of resale to a particular person or class of persons and (2) the likelihood that the particular misrepresentation (or concealment) would be passed on to them.” (Id. at 608.)

Here, the FAC alleges FCA manufactured and/or distributed the subject vehicle, which Simons purchased from FCA’s authorized dealer. (FAC ¶¶ 7, 9.) In addition, the FAC alleges “FCA acquired its knowledge of the Transmission Defect prior to [Simons] acquiring the Subject Vehicle, through sources not available to consumers such as [Simons], including but not limited to pre-production and post-production testing data; early consumer complaints about the transmission defect made directly to Defendant FCA and its network of dealers; aggregate warranty data compiled from Defendant FCA’s network of dealers, testing conducted by Defendant FCA in response to these complaints, as well warranty repair and part replacements data received by Defendant FCA from Defendant FCA’s network of dealers, amongst other sources of internal information.” (FAC ¶ 26.) The FAC also alleges FCA and FCA’s dealerships concealed the defects to drivers or potential purchasers pursuant to FCA’s directions. (FAC ¶ 10.) Simons sufficiently alleged facts showing FCA had a reasonable expectation the fraud would be passed to subsequent purchases, therefore establishing a fiduciary relationship. The pleadings have adequately pled FCA’s duty of disclosure.

Simons’s FAC adequately pleads facts to support a cause of action for fraudulent inducement – concealment. The Court overrules the demurrer on this basis, and as to the entire FAC.

IV. CONCLUSION

Defendant

FCA US LLC’s demurrer to Plaintiff Todd Simons’s First Amended Complaint is OVERRULED.

Simons is ordered to give notice.

DATED:

August 6, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the

parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.